

Tax Parcel Number: 335-8.00-36.07

Prepared By and Return To:
Jonathan E. Horner, Esquire
20184 Phillips Street
Rehoboth Beach, DE 19971

**DECLARATION OF
DUTCHMAN'S HARVEST CONDOMINIUM
LEWES REHOBOTH HUNDRED, SUSSEX COUNTY, DELAWARE**

This Declaration of Dutchman's Harvest Condominium (as the same may be amended from time to time as provided herein, this "**Declaration**") is made this 26th day of June, 2025 by Lewes Attainable Housing, LLC, a Delaware limited liability company ("**Declarant**").

RECITALS

- A. Declarant is the owner of fee simple title to the Property.
- B. Declarant intends to construct Units (as defined hereinafter) on the Property pursuant to the provisions of this Declaration and the Declaration Plan (as defined hereinafter).
- C. It is the intention of the Declarant to establish the form of ownership of the Property as a condominium pursuant to the provisions of the Act (as defined hereinafter).

NOW THEREFORE, witnesseth:

1. Intent of Submission and Description of Property. Declarant hereby submits certain real property located in the City of Lewes, Sussex County, Delaware, more particularly described in **Schedule "A"** annexed hereto, together with the buildings and improvements thereon erected and owned by Declarant in fee simple absolute (hereinafter referred to as the "**Property**"), to the provisions of the Delaware Uniform Common Interest Ownership Act, 25 Del. C. §81-101, et seq., as amended (hereinafter referred to as the "**Act**"), in order to create a plan of condominium ownership in the Property. The Property currently consists of the Land, Units and Common Elements (all as hereinafter defined) shown on the Declaration Plan (as hereinafter defined) but expressly excepts and excludes the Expansion Area (as hereinafter defined), including, but not limited to, the Expansion Unit(s) (as hereinafter defined), until such time, if ever, as such Expansion Area, including, but not limited to, such Expansion Unit(s), are constructed and submitted to the Act and the Condominium Regime (as hereinafter defined) in accordance with the terms of this Declaration.

2. Definitions. The terms used in this Declaration and in the Bylaws recorded immediately hereafter and all amendments to said documents shall have the following meanings:

(a) "Act" means the statutory provisions set forth in 25 Del. C. §81-101, et seq., as amended.

(b) "Association" means all of the Unit Owners acting as a group in accordance with this Declaration and the Act and Bylaws, which shall be organized pursuant to §81-301 of the Act as a Delaware unincorporated nonprofit called "Dutchman's Harvest Condominium Association".

(c) "Bylaws" means the recorded document that contains the procedures for the conduct of the affairs of the Association in accordance with the Act, including any and all amendments thereto.

(d) "Common Elements" means (1) all parts of the Property other than the Units, as more fully set forth in Section 8 hereof, captioned "Common Elements", and (2) any other interest in real estate for the benefit of the Unit Owners which are subject to this Declaration. The Common Elements shall include the General Common Elements and Limited Common Elements but shall expressly except and exclude the Expansion Area until such time, if ever, as such Expansion Area is constructed and submitted to the Act and the Condominium Regime in accordance with the terms of this Declaration.

(e) "Common Expenses" means and includes:

(1) All sums lawfully assessed against the Unit Owners by the Executive Board;

(2) Expenses of administration, maintenance, repair and replacement of the Common Elements, including Repair and Replacement Reserves as may be established from time to time;

(3) Expenses agreed upon as Common Expenses by the Unit Owners in accordance with the terms of this Declaration and the Bylaws;

(4) Expenses declared to be Common Expenses by the provisions of the Act or by this Declaration or the Bylaws;

(5) Premiums for insurance policies required to be purchased by the Executive Board pursuant to the Bylaws;

(6) Costs and expenses allocated and attributable to the Property and payable by the Executive Board on behalf of the Unit Owners which are assessed to the Property (including the applicable Units) in connection with the maintenance, repair, replacement and other obligations, responsibilities and duties contained in or services provided under any recorded or unrecorded agreement or document;

(7) All valid charges assessed against or applicable to the Property and the Condominium as a whole; and

(8) All expenditures made by, or financial liabilities of, the

Association, together with any allocations to reserves, related to Common Elements, other Units or other real estate described in this Declaration.

(f) "Condominium" means Dutchman's Harvest Condominium project being submitted to the provisions of the Act pursuant to the terms and conditions of this Declaration.

(g) "Condominium Documents" means this Declaration and the Declaration Plan, Bylaws, Rules and Regulations, and Declaration of Easement, and any of the accompanying documents referenced or provided for as schedules thereto, and any and all amendments thereto.

(h) "Condominium Regime" means the entirety of the Property as developed and submitted to the Act from time to time consistent with the terms of the Condominium Documents.

(i) "County" means Sussex County, Delaware.

(j) "Declaration" means this document by which Declarant, as owner in fee simple of the Property, submits the Property to the provisions of the Act, and any and all amendments hereto.

(k) "Declaration Plan" means the Condominium Declaration Plan dated June 18, 2025 and prepared by Davis, Bowen & Friedel, which Condominium Declaration Plan (i) contains a survey of the entire Property and a depiction and location of the Units, Common Elements and the Expansion Area, (ii) is recorded contemporaneously with this Declaration in the Recorder's Office, and (iii) complies with §§81-103(18) and 81-209 of the Act, and any and all amendments thereto.

(l) "Declaration of Easement" means the Declaration Of Easement Together With An Irrevocable Power Of Attorney Coupled With An Interest (a copy of which is attached hereto as **Schedule "E"**), which is of record immediately prior to the Declaration Plan in the Recorder's Office, and any and all amendments thereto.

(m) "Declarant" means Lewes Attainable Housing LLC, a Delaware limited liability company, and its successors or assigns.

(n) "Declarant Control Period" means the period beginning on the date of recordation of this Declaration and ending on the date which is the earlier of (i) sixty (60) days after the date on which seventy-five percent (75%) or more of the proposed Units, including any and all Units submitted to the Act and the Condominium Regime in accordance with this Declaration and any and all proposed Expansion Unit(s), together with the Common Elements appurtenant thereto, have been conveyed to Unit Owners other than Declarant; (ii) two (2) years after Declarant has ceased to offer Units for residential purposes for sale in the ordinary course of business; (iii) two (2) years after any right to add new Units for residential purposes was last exercised; (iv) the day Declarant, after giving written notice to the Unit Owners, records an instrument voluntarily surrendering all rights to control activities of the Association; or (v) five (5)

years after the date on which the first Unit has been conveyed to a Unit Owner other than Declarant.

(o) "Easement Agreements" means, individually and collectively, this Declaration, those certain easements and licenses listed on **Schedule "G"** attached hereto, and any and all amendments to any of the foregoing Easement Agreements.

(p) "Eligible Mortgage Holder" means a holder, insurer or guarantor of a mortgage on a Unit who, upon written request to the Association (such request to state the name and address of such holder, insurer or guarantor and the Unit number or address of the Unit on which it holds (or insures or guarantees) the mortgage), has requested notice from the Executive Board as to any proposed action which requires the consent of a specified percentage of Eligible Mortgage Holders.

(q) "Executive Board" means a board of natural persons of the number stated in this Declaration.

(r) "Expansion Area" shall have the meaning ascribed in Section 5 hereof, captioned "Expansion" and shall expressly except and exclude the Property.

(s) "Expansion Unit(s)" shall have the meaning ascribed in Section 4 hereof, captioned "Units."

(t) "General Common Elements" mean the entire Property expressly excepting and excluding the Units and Limited Common Elements, as shown on the Declaration Plan and as otherwise set forth herein.

(u) "Initial Unit(s)" shall have the meaning ascribed in Section 4 hereof, captioned "Units."

(v) "Land" means the real property, expressly excepting and excluding (i) the Units or other improvements thereon, and (ii) the Expansion Area, including, but not limited to, the Expansion Unit(s).

(w) "Limited Common Elements" shall have the meaning ascribed in Section 8(c) hereof, captioned "Limited Common Elements."

(x) "Majority "or "Majority of the Unit Owners" means the Owners of more than fifty percent (50%) of the aggregate interest in the undivided ownership of the Common Elements as specified herein.

(y) "Managing Agent" means a professional managing agent employed by Declarant or the Executive Board to perform such duties and services as Declarant or the Executive Board shall authorize in conformance with this Declaration and the Bylaws.

(z) "Participating Builder" shall mean and refer to any legal entity or party other than Owner that, in the ordinary course of such party's business, constructs residential structures on any portion of the Property for sale or lease to others who would qualify as a "Dealer" under the Act.

(aa) "Percentage Interest" means the proportionate undivided interest in the Common Elements, expressed as a percentage and assigned to each Unit as set forth in **Schedule "C"** attached hereto and subject to specified reductions upon subsequent amendments thereto as provided for in **Schedule "D"** attached hereto.

(bb) "Property" means the Land, Units and Common Elements, and all other improvements and structures thereon, owned in fee simple and all easements, rights, and appurtenances belonging thereto which have been or are intended to be submitted to the provisions of the Act and all articles of personal property intended for use in connection therewith, but expressly excepts and excludes the Expansion Area, including, but not limited to, the Expansion Unit(s), until such time, if ever, as such Expansion Area, including, but not limited to any such Expansion Unit(s), is constructed and submitted to the Act and the Condominium Regime in accordance with the terms of this Declaration.

(cc) "Recorder's Office" means the Office of the Recorder of Deeds, in and for Sussex County, Delaware.

(dd) "Rules and Regulations" means such rules and regulations as may be adopted from time to time by Declarant or the Executive Board that are deemed necessary for the enjoyment of the Condominium, provided they are not in conflict with the Act or any of the Condominium Documents.

(ee) "Unit" means a Unit as defined by §81-103(48) of the Act, and which are separately described on the Declaration Plan and herein and depicted and described on the Declaration Plan, and shall expressly include the Initial Unit(s) and, when and if constructed and submitted to the Act and the Condominium Regime, any Expansion Unit(s).

(ff) "Unit Designation" means the number, letter, or combination thereof designating a Unit on the Declaration Plan.

(gg) "Unit Owner" or "Owner" means any natural person, corporation, partnership, association, limited liability company, trust or other legal entity or any combination thereof which owns title to a Unit, but does not include any such natural person, corporation, partnership, association, limited liability company, trust or other legal entity or any combination thereof having an interest in a Unit solely as security for an obligation.

3. Name of Condominium. The Condominium shall be known as "Dutchman's Harvest Condominium." The Condominium is an expandable condominium as hereinafter provided.

4. Units. There shall be a maximum of up to one hundred forty (140) Units erected on the Land. As of the date of this Declaration, Unit 101 through 110 inclusive (the "**Initial Unit**"), have been built. The Initial Unit is located as shown on the Declaration Plan.

(a) As provided in this Declaration, including, but not limited to, Section 5 hereof, Declarant has reserved the right to expand the Condominium Regime to include a maximum of up to one hundred forty (140) additional Units (the "**Expansion Unit(s)**") erected

on the Land, each to be constructed in the future.

(b) Each of the Initial Unit(s) has been, or will be, erected in substantial conformity with, and as depicted on the Declaration Plan. Each of the Expansion Unit(s), as they are built, will be located in substantial conformity with and as depicted on the Declaration Plan. Each of the Expansion Unit(s), when and if submitted to the Act and the Condominium Regime in accordance with the terms of this Declaration, will be substantially consistent, in terms of quality of construction and structure type, with the Initial Unit(s); provided, however, that Declarant may effect minor changes in the location of such Units in order to improve views to and from the Units, improve parking areas and harmonize the Property to the sewer, water and other utilities service distribution plans; and further provided that the Declaration Plan shall not be substantially changed and no interest in any Unit, or Common Element shall be changed thereby, except as provided herein. To accomplish the purpose set forth herein, contemporaneously herewith Declarant has filed the Declaration of Easement in the Recorder's Office.

(c) Upon the recordation of this Declaration, each Unit Owner, by operation of law, shall have the undivided Percentage Interest in the Common Elements, Common Expenses, and common profits, and shall have the number of votes, set forth on Schedule "C" attached hereto, as amended. Each Unit's Percentage Interest in the Common Elements and each Unit's voting rights shall be the same. The sum of the Percentage Interests when expressed in terms of a percentage as provided in Schedule "C" for all Units shall equal one hundred percent (100%), except for minor variations due to rounding. In the event of any discrepancy between an allocated interest and the result derived from application of the pertinent formula, then the allocated interest prevails as provided under §81-207(e) of the Act.

5. Expansion.

(a) Right to Expand. Subject to the limitations and requirements set forth herein, Declarant and any successors in title thereto shall have the absolute right (but not the obligation), without the consent of the Association, the Executive Board, any Unit Owner, any Eligible Mortgage Holder, or the holder of any lien on any Unit or any other third party, at any time and from time to time, to be exercised prior to the date that is twenty (20) years after the date of the recordation of this Declaration in the Recorder's Office as may be extended by the Declarant as provided in Section 20(a) below (as extended the "**Expansion Deadline**"), to annex into the land and the improvements constituting the property of the Condominium, as the same are described and identified by legal description on Schedule "A" attached hereto; and thereby to submit to each and every of the provisions of this Declaration and the Act and to the Condominium Regime, the lands described on said Schedule "A" which are currently excepted out and from submission to the Act and the Condominium Regime, and which lands underlie, *inter alia*, the Expansion Unit(s), as applicable, and which lands are delineated, in general terms, on the Declaration Plan (collectively, the "**Expansion Area**"), together with the improvements to be hereafter constructed upon any such Expansion Area, in substantial conformity with the Declaration Plan as described and identified hereinabove. Nothing herein shall be construed or interpreted (either expressly or impliedly) as requiring or obligating Declarant to expand the Condominium and annex any additional land (including, but not limited to, any or all of the Expansion Area) or construct any additional Units or other improvements thereon, including, but

not limited to, any one or more of the Expansion Unit(s). The foregoing expansion may be accomplished in one or more phases (individually an "**Expansion Phase**" and collectively the "**Expansion Phases**"), subject to such changes as Declarant or its successor or assignee, in the discretion of Declarant or such successor or assignee, deems necessary due to site conditions, construction problems, revisions to applicable building codes or circumstances dictated by the needs of the market place or such other factors or circumstances that Declarant encounters from time to time that requires such changes in Declarant's sole subjective and exclusive judgment. The construction of the Expansion Phases, in whole or in part, is to be at the sole subjective and absolute discretion of Declarant or Declarant's successor or assignee. If, as and to the extent constructed and annexed and submitted as aforesaid, each Expansion Phase shall become part of the Condominium Regime and be subject to the terms and provisions of the Condominium Documents, the same as if both the currently "as-built" Condominium Regime and each such Expansion Phase, when and as constructed, had been built contemporaneously and all references herein shall be construed appropriately in context.

(b) Any such expansion and annexation of any one or more of the Expansion Phases shall be accomplished by the recordation in the Recorder's Office of an amendment to this Declaration, an amendment to **Schedule "A"** and **Schedule "B"** of this Declaration, and an amendment to **Schedule "C"** of this Declaration, which shall conform to the schedule contained in **Schedule "D"** of this Declaration, as applicable, and an amended Declaration Plan showing thereon, *inter alia*, the Units as constructed. It shall be sufficient to describe and identify the land in any expansion or annexation under this Section by identifying, describing and designating said land (i) by the Unit numbers of the Units proposed to be built over the land, as the same are identified on **Schedule "A"** and delineated on the Declaration Plan, and/or (ii) on the Declaration Plan. Any expansion or annexation of land under this Section shall be of an amount of land of square or cubic footage not less than that which is necessary to construct each of the Expansion Unit(s), as applicable, as delineated on the Declaration Plan and any amended Declaration Plan.

(c) Adjustments to Common Element Percentages. Upon the recordation of an amendment to this Declaration for the purpose of annexing to the Property all or any portion of the Expansion Area, including, but not limited to, any one or more of the Expansion Unit(s), each Unit Owner, by operation of law, shall have the undivided Percentage Interest in the Common Elements, Common Expenses, and common profits, and shall have the number of votes, set forth on **Schedule "C"** attached hereto, as amended. Each such expansion and annexation will be accomplished by recording in the Recorder's Office an amendment to this Declaration which will, among other things and as appropriate, adjust each Unit's Percentage Interest in the Common Elements and each Unit's voting rights as calculated based on the Unit type (which is assigned based upon comparable square footage areas of the various floor plan styles of the various Units as determined by Declarant using a method of measurement that is consistently applied among all the Units, and shall be determined and calculated based on the percentage equivalent of a fraction, the numerator of which is the net square footage of the Unit and the denominator of which is the total number of applicable net square feet of all the Units submitted to the Act and Condominium Regime in accordance with this Declaration and any subsequent amendments; provided, however, there shall be no adjustment for any minor deviation in the actual square footage from the approved construction drawings as a result of the as-built dimensions of any Unit irrespective of any market

or sales value) as shown on Schedule "D". The sum of the Percentage Interests when expressed in terms of a percentage as provided in Schedule "D" for all Units shall equal one hundred percent (100%), except for minor variations due to rounding. In the event of any discrepancy between an allocated interest and the result derived from application of the pertinent formula, then the allocated interest prevails as provided under §81-207(e) of the Act.

(d) Irrevocable Power of Attorney. Upon the recordation of such amendment, the Percentage Interest and voting rights provided for under the Act, the Bylaws, and this Declaration shall be reallocated as set forth above and as amended on Schedule "C" and reflected on Schedule "D". Any deed for any Unit shall be delivered subject to the conditional limitation that the Percentage Interests and voting rights appurtenant to such Unit shall be automatically reallocated pro tanto upon the recordation of such amendments. Attached hereto as Schedule "F" is an Irrevocable Power Of Attorney Coupled With An Interest, which shall be executed by each Unit Owner coincident with and in partial consideration of Declarant's conveyance of each Unit to the Owner thereof. Such Power of Attorney shall be recorded with the Recorder's Office to confirm the right of Declarant and its successors and assigns to create and expand the Condominium Regime to include part or all of the Expansion Phases as herein provided. In addition, each such Unit Owner and mortgagee of a Unit shall be deemed to have agreed and covenanted to execute such further instruments, if any, as may be required by Declarant, its successors or assigns, to properly accomplish such amendments. Notwithstanding the foregoing, in the absence of the execution and delivery of any such Power of Attorney by a Unit Owner, any such Unit Owner (for itself and its successors and assigns), by the acceptance of any deed for such Unit shall be deemed to have acknowledged and agreed to grant the rights and authority referenced and contained in the foregoing Power of Attorney to the Declarant for the duration of the Expansion Deadline.

(e) Execution and Recordation of Amendments. There is reserved unto Declarant, its successors or assigns, an irrevocable power of attorney, coupled with an interest, for the purpose of reallocating the Percentage Interests and voting rights appurtenant to each of the Units in accordance with this Section and executing, acknowledging and delivering such further instruments as may from time to time be required in order to accomplish the purposes of this Section. Each Unit Owner and each mortgagee of a Unit shall be deemed to have acquiesced in, and expressly authorized, the amendment of this Declaration and the Declaration Plan for the purpose of adding additional Units and Common Elements to the Condominium in the manner set forth in this Section and shall be deemed to have granted unto Declarant, its successors and assigns, an irrevocable power of attorney, coupled with an interest, to effectuate, execute, acknowledge and deliver any such amendments, and each such Unit Owner and mortgagee shall be deemed to have agreed and covenanted to execute such further instruments, if any, as may be required by Declarant, its successors or assigns, to properly accomplish such amendments.

(f) Status of Expansion Area, including, but not limited to, Land Underlying Expansion Unit(s), Prior to Expansion. During the interval of time between the recordation of this Declaration in the Recorder's Office and the Expansion Deadline, Declarant will not use any of the Expansion Area, for any purpose whatsoever, except to construct the Units and other appurtenant improvements thereon as provided under this Declaration and the Declaration Plan and hold the same in inventory for annexation as provided for herein.

(g) Obligation for Expense, Taxes and Other Burdens of Ownership of, and Right to Income and Proceeds from, Expansion Area Prior To Expansion. Until all or any portion of the Expansion Area is submitted to the provisions of this Declaration and the Act and the Condominium Regime in accordance with the terms of this Declaration, the expense, taxes and any other burdens of ownership of any such Expansion Area not so submitted shall be the responsibility of Declarant, at its sole cost and expense, and any income or proceeds from the Expansion Area shall inure to benefit of Declarant. Any necessary amendments to the Declaration and/or Declaration Plan under this Section shall also be at the sole cost and expense of Declarant.

(h) The provisions of this Section shall also apply to any construction associated with any Expansion Phase by Declarant undertaken by virtue of the Declaration of Easement.

(i) Effect of Expansion. Upon each annexation of all or any portion of the Expansion Area, including, but not limited to, any one or more Expansion Unit(s), into the property of the Condominium, **Schedule "A"** shall be amended to delete the exception of such portion of the Expansion Area as part of the land previously excluded from the property of the Condominium.

(j) Additional FHA Expansion Provisions. In the event that additional property (expressly excepting and excluding all or any portion of the Expansion Area, including, but not limited to, any one or more Expansion Unit(s)) is added to the Condominium, the prior written consent of each holder, insurer or guarantor of a mortgage on a Unit shall be obtained at the time such additional property is added to the Condominium. If the Federal National Mortgage Association ("FNMA") holds any mortgage on a Unit at the time such additional property (expressly excepting and excluding all or any portion of the Expansion Area, including, but not limited to, any one or more Expansion Unit(s)), is to be added to the Condominium, FNMA shall be furnished with title evidence, in form satisfactory to FNMA, which discloses any lien, easement or other encumbrances affecting such additional property to be added or which will affect the Condominium after the addition of such additional property.

6. Adjustments to Percentage Interests.

(a) Percentage of Ownership in Common Elements. Until all of the Expansion Unit(s) are constructed, annexed and submitted to the Act and Condominium Regime as hereinbefore provided, the respective percentages of ownership in the Common Elements for each Unit which shall be used for purposes of determining voting rights and the percentage share of each Unit for the expenses of and relating to the various rights in the Common Elements, shall be determined and calculated based on the percentage equivalent of a fraction, the numerator of which is one (1) and the denominator of which is the total number of Units submitted to the Act and Condominium Regime in accordance with this Declaration and any subsequent amendments; and is shown on **Schedule "C"** attached hereto, as the same may be amended from time to time or at any time in accordance with the provisions of this Declaration.

(b) Change in Percentage of Ownership in Common Elements. Notwithstanding anything contained in this Declaration to the contrary, the proportionate undivided interest in the Common Elements of one or more Unit Owners may be reduced, altered,

or changed by the recording of an amendment to this Declaration in accordance with the provisions of Section 5 hereof, captioned "Expansion." Any alteration or change in the proportionate voting rights of any Unit Owner shall be made only in accordance with the provisions of the Condominium Documents and Act.

(c) Change in Percentage of Ownership in Common Elements, Voting Rights and Expenses by Expansion and Annexation, and Method of Implementing Any Such Change. Notwithstanding any other provisions of this Declaration to the contrary, upon annexation of land into the Property of the Condominium as provided for in Section 5 hereof, captioned "Expansion", the Percentage Interest of each Unit Owner in the Common Elements and the voting rights and expenses provided for in the Act and the Bylaws shall be reallocated as provided for, and authorized in, said Section 5, and in accordance with the formula provided for in said Section 5 and as listed on Schedule "D" attached hereto. At the time of completion of construction of each Expansion Phase and submission by Declarant of each such Expansion Phase to the Act and the Condominium Regime, Declarant shall file an amendment to this Declaration and the Declaration Plan in the Recorder's Office as provided for in Section 5 above.

7. Units. As of the date hereof, the Condominium consists of the Initial Unit(s). Each Unit's identifying number and, subject to being reduced, altered or changed in accordance with the terms of this Declaration, including, but not limited to, Sections 5 and 6 hereof, the Percentage Interests of each Unit in the Common Elements are listed on Schedule "C" attached hereto. The location of the Units is substantially delineated on the Declaration Plan. Each Unit consists of the space measured horizontally between the finished (exposed) interior surface of such Unit and measured vertically from the finished (exposed) interior side of the slab or floor surface of such Unit to the finished (exposed) interior surface of the roof of such Unit. Included as part of each such Unit are: (a) the structural and non-structural walls and framing constituting the entrance of such Unit; (b) the electric panel located within such Unit; (c) the hot water heater for such Unit; (d) interior load and nonload-bearing walls or partitions located within such Unit; (e) all electrical outlets and lights serving such Unit (whether within or without such Unit); (f) all stoves, refrigerators, microwave and garbage disposal, heat and air conditioning units, ceiling fans, washer-dryers, sinks, baths, or other plumbing or heating or cooling facilities located within or without such Unit but solely serving such Unit, including any air conditioner-heat pump; (g) the plumbing and water lines serving such Unit commencing at the collector from the main lines serving such Unit; (h) all interior stairs, stair wells, and stair carriages solely serving such Single-Family Unit; (i) any storage areas solely serving such Unit; (j) all windows and doors servicing such Unit; (k) all screens and storm window inserts pertinent to the windows and doors servicing such Unit; and (l) any betterments appurtenant to such Unit, located within the yard immediately adjacent to such Unit and installed initially by Declarant.

8. Common Elements.

(a) "Common Elements" consist of the General Common Elements and the Limited Common Elements, but expressly excepts and excludes the Units and the Expansion Area, until such time, if ever, as such Expansion Area is submitted to the Act and the Condominium Regime in accordance with the terms of this Declaration. Common Elements include (by way of illustration and not limitation) all Land, and all air space above the surface of the Land (but

excluding air space enclosed within the title lines of any Unit) together with all improvements and structures, subject to any public utility easements now of record or to be given or obtained in the future either by Declarant or the Executive Board for sanitary and storm sewer use, water lines, electric, telephone and cable T.V., transmission lines, sewage lift stations, pump house or other similar necessary or desirable utility functions or which are appurtenant to the Land; expressly excepting and excluding however, the Expansion Area until such time, if ever, as such Expansion Area is submitted to the Act and the Condominium Regime in accordance with the terms of this Declaration.

(b) "General Common Elements" consist of the entire Property exclusive of the Units and the Limited Common Elements.

(c) "Limited Common Elements" consist of any and all of those Common Elements identified on the Declaration Plan as Limited Common Elements or as otherwise reasonably intended for the use by the Owner or occupant of a specific Unit or Units (i.e., one or more but less than all of the Units) and as otherwise provided under §81-103(27) of the Act. Limited Common Elements shall include, by way of example and not limitation, (a) all porches, decks, balconies, patios, walkways, and crawl spaces accessible directly from a Unit, or appurtenant to a Unit, and designated as a Limited Common Element on the Declaration Plan; and (b) any other Common Element intended for use by the Owner or occupant of a specific Unit or Units or otherwise dedicated to the use of one or more but less than all of the Owners of Units. Limited Common Elements of the type described in this paragraph shall automatically be allocated as Limited Common Elements for the exclusive use and benefit of the Unit(s) they are designed and constructed to serve, or to which they are allocated as provided herein, without any further action or document required, whether or not such Limited Common Elements are expressly so designated on the Declaration Plan. No Limited Common Elements may be reallocated without the prior written consent of a majority of the Unit Owners and then only in accordance with the Act.

9. Use of Units and Common Elements. Each Unit and the Common Elements shall be occupied and used as follows:

(a) No part of the Property shall be used for other than housing and the related common purposes for which the Property was designated and each Unit shall be used only for residential purposes and shall be occupied only by as many persons as do not burden such Unit or the Common Elements; provided, however, that notwithstanding anything contained in any of the Condominium Documents to the contrary (1) Declarant and each Participating Builder shall have the right to maintain, at no charge, all of the following: one (1) sales office, one (1) construction management office, and two (2) models in any Units owned by Declarant or a Participating Builder or on the Common Elements in any size, and at any location as Declaration or the Participating Builder shall deem necessary in its sole subjective and absolute discretion and (2) Declarant or the applicable Participating Builder maintaining them shall have the right to relocate any one or more such offices or models, at any time and from time to time, in Declarant's or the applicable Participating Builder's sole subjective and absolute discretion. In addition, Declarant and each Participating Builder shall have the right to maintain, at no charge, one or more construction trailers, equipment, vehicles, and other temporary structures, equipment, vehicles and

improvements associated with the development and construction of the Property upon the Common Elements or any Unit owned by Declarant or a Participating Builder.

(b) Nothing shall be done or kept in any Unit or in the Common Elements which will increase the rate of insurance for the Property, or the contents thereof, applicable for residential use, without the prior written consent of the Executive Board. No Owner shall permit anything to be done or kept in such Owner's Unit or in the Common Elements which will result in the cancellation of insurance on the Property, or the contents thereof, or which would be in violation of any law.

(c) No immoral, improper, offensive or unlawful use shall be made of the Property or any part thereof. All laws, zoning ordinances, orders, rules, regulations, or requirements of any governmental agency having jurisdiction thereof, relating to any portion of the Property shall be observed and complied with, by and at the sole expense of, the Unit Owner or the Executive Board, as applicable.

(d) Except for residential use permitted by paragraph (a) of this Section and subject to the rights granted to Declarant and each Participating Builder by paragraph (a) of this Section, no industry, business, trade, or occupation, designed for profit, not-for-profit, altruism, exploration, or otherwise, shall be conducted, maintained, or permitted on any part of the Property.

(e) No "For Rent" signs or other window displays or advertising shall be maintained or permitted on any part of the Property or in any Unit therein without the written consent of the Executive Board. Notwithstanding the foregoing limitations and subject to the applicable provisions of Delaware law, the right is expressly reserved and retained by Declarant and each Participating Builder and any of their agents to place "For Rent" signs or other window displays or advertising on any unsold or unoccupied Units or at suitable places in the Common Elements, including, but not limited to, the sales offices, and the right is hereby given to any mortgagee, who may become the Owner of any Unit, to place such signs on any Unit owned by such mortgagee.

(f) In accordance with §81-320(c) of the Act, any Unit Owner shall have the right to display the flag of the United States of America, measuring up to three (3) feet by five (5) feet, on a pole attached to the exterior wall of such Unit Owner's Unit or to the Limited Common Elements appurtenant to such Unit.

(g) Subject to the express exceptions set forth under the Act and this Declaration and subject to the applicable provisions of Delaware and Federal law, no sign, banner, flag, or advertisement of any kind, including, but not limited to, informational signs, "for rent" signs, signs of contractors and subcontractors, or signs of a political nature or in support of any particular political cause or person running for public or quasi-public office or any other signs or banners of any kind whatsoever, shall be erected or maintained on or visible from a Unit or Common Element without the prior written consent of the Executive Board. If permission is granted to any Owner to erect a sign, the Executive Board reserves the right to restrict the size, shape, color, lettering, height, material and location of the sign, or in the alternative, provide the Owner with a sign to be used for such purposes. No sign shall be nailed or otherwise attached to

trees on the Property.

(h) A Unit Owner shall not change the exterior appearance of the Common Elements adjacent to such Owner's Unit or any part of the Unit visible from outside of the Unit (i.e. doors and windows) and other Limited Common Elements by painting, staining or otherwise altering, in any manner or fashion the existing color thereof, adding fixtures, plantings or landscaping thereto, or otherwise, without obtaining the prior written approval as required under this Declaration.

(i) Nothing shall be altered or constructed in or on or removed from the Common Elements, except upon the written consent of the Executive Board and subject to the terms of this Declaration.

(j) The Common Elements shall be used only for the furnishing of the services and facilities for which they were reasonably suited and which are incident to the use and occupancy of the Units.

(k) All parts of the Unit which are exposed to the elements, including by way of illustration and not limitation, decks, deck rails, patios, porches, stairs, stair carriages and doors, shall not be changed nor shall the appearance of such be changed without obtaining the prior written approval as required under this Declaration. No clothing, towels, sheets, or other items may be hung, draped, or allowed to be placed upon or over decks, deck rails, or patios of the Units.

(l) During winter or cold weather months, all Units shall be heated at a level of not less than 58 degrees to maintain heated water pipes.

(m) No trailers, campers, recreational vehicles, boats and other large vehicles (other than for temporary loading and unloading) shall be parked on the Property at any time, provided, that Declarant and each Participating Builder shall have the right to maintain, at no charge, construction trailers, equipment and vehicles associated with the development and construction of the Property upon the Common Elements or any Unit owned by Declarant or such Participating Builder for a period beginning on the date hereof and ending on the date which is one (1) year after the last proposed Unit (including any and all Units submitted to the Act and the Condominium Regime in accordance with this Declaration and any and all proposed Expansion Unit(s)) has been conveyed by Declarant. No junk or derelict vehicle or other vehicle on which current registration plates are not displayed shall be kept upon any of the Common Elements.

(n) The maintenance, keeping, boarding and/or raising of animals, livestock, poultry or reptiles of any kind, regardless of number, shall be and are prohibited within any Unit or upon the Common Elements, except that the keeping of small, orderly domestic pets (i.e., dogs, cats or caged birds) not to exceed three (3) pets per Unit without the approval of the Executive Board, is permitted, subject to the Rules and Regulations adopted by the Executive Board; provided, however, that such pets are not kept or maintained for commercial purposes or for breeding; and provided, further, that any such pet causing or creating a nuisance or unreasonable disturbance or noise shall be permanently removed from the Property by the owner of such pet upon ten (10) days written notice from the Executive Board. Such pets shall not be

permitted upon the Common Elements unless accompanied by an adult and unless carried or leashed. No dog, cat or other animal shall be permitted to relieve itself on any shrub, patio, building, fence, car or other areas or components of the Common Elements or items of personal property belonging to neighboring Unit Owners. Any solid waste left on any Common Elements or the Units shall be promptly placed in a bag or other suitable receptacle and properly disposed of by the responsible Unit Owner of such pet. Every pet owner shall take all reasonable steps to prevent the noise, waste or odors of such owner's pet from annoying other Unit Owners. Unit Owners shall be strictly liable for the actions of their pets and those of their invitees, licensees, tenants and guests. The Executive Board shall have the right to require that any habitually diseased, infested, unclean or noisy animal, bird, reptile, fish or insect be removed from the Property. Any Unit Owner who keeps or maintains any pet upon any portion of the Property or allows any pet to be so kept or maintained upon any portion of the Property shall be deemed to have indemnified and agreed to hold the Association, each Unit Owner and Declarant free and harmless from any loss, claim or liability of any kind or character whatever arising by reason of keeping or maintaining such pet upon any portion of the Property. All pets shall be registered and inoculated as required by law. The Executive Board may establish reasonable fees for registration of pets not to exceed the additional cost incurred by the Association resulting from the presence of such pets. Pets shall not be left unattended on any patio, porch or deck.

(o) No woodstoves, kerosene heaters, or fireplace inserts shall be located within or without the Units; provided, however, that gas fireplaces are specifically approved.

(p) Grills, whether charcoal, gas, or otherwise shall not be used upon the decks or balconies of the Units.

(q) The Executive Board shall establish reasonable rules, regulations and remedies with respect to the use and enjoyment of the parking spaces which are delineated as General Common Elements, to ensure proper use of such parking spaces by the Unit Owners and to protect against the unauthorized use by third parties.

(r) Each Unit Owner (including Declarant and each Participating Builder) shall have the unrestricted perpetual right to use the Common Elements (except the Limited Common Elements) in common with all other Unit Owners as may be required for the purposes of access and ingress and regress to and use and occupancy and enjoyment of the respective Unit owned by such Unit Owner. Such right to use the Common Elements shall extend to each Unit Owner, and the agents, servants, and invitees of each Unit Owner. Each Unit Owner shall have the right to the exclusive use and possession of the Limited Common Elements contiguous to or assigned to or serving exclusively the respective Unit owned by such Unit Owner. Such rights to use and possess the Common Elements shall be subject to and governed by the provisions of the Act and the Condominium Documents.

(s) Garbage, rubbish or any other material of any nature to be abandoned or disposed of shall not be placed, left or allowed to fall upon any portion of the Property, and shall be placed in dumpsters serving the Condominium located on or in the Common Elements. Each Unit Owner shall take all reasonable steps to prevent such Owner's garbage and refuse from omitting odors which would reasonably annoy any other Unit Owner.

(t) No Unit Owner may alter, amend or otherwise interfere with the stormwater management and/or drainage facilities or water easement areas. The Association may not alter, amend or otherwise interfere with the stormwater management and/or drainage facilities without first submitting a plan for such alteration, amendment or interference to Declarant (so long as Declarant holds title to any of the Expansion Area) and Sussex County for review and approval.

(u) Exterior Improvement Approval Procedure. Prior to installation of any elements on the exterior of a Unit, or in the Limited Common Elements appurtenant to the same, including but not limited to fences, such Unit Owner must first seek and be granted written authorization and approval from the Executive Board to construct and maintain the improvement, under such terms and conditions as the Executive Board and Unit Owner shall agree in writing or as otherwise provided under the Condominium Documents or other design guidelines adopted by Declarant;

(i) Any and all costs associated with the permitting, inclusive of amendments to the Declaration Plan, construction, maintenance, repair and replacement of such exterior improvement shall be the sole responsibility of such Unit Owner and shall not be a Common Expense. Should approved exterior improvements require alterations to the irrigation system, the Unit Owner must contract for those repairs with the company responsible for irrigation maintenance within the Condominium at the time of said approval at the sole expense of such Unit Owner;

(ii) In order to encourage harmonious architectural design and to protect the visual integrity, architectural spirit and long-term property values of the Condominium Regime, such exterior improvements shall be of the same size, type, quality, material, color and appearance, to the extent practicable, which is equal and identical to those originally constructed by Declarant, and shall be constructed in accordance with design guidelines (the "**Design Guidelines**") in place at the time of application to construct exterior improvements. Notwithstanding anything contained herein to the contrary, the Declarant may make changes to the guidelines at any time during the Declarant Control Period in its sole and absolute discretion;

(iii) In the event that repair, replacement, maintenance or other work on the exterior improvement becomes necessary, then any such work shall, to the extent practicable, be performed so that the condition and appearance is equal and identical to the condition and appearance of the exterior improvements originally built by Declarant or a Participating Builder;

(iv) No exterior improvements, once approved by the Executive Board, shall be altered, extended, added to, removed or otherwise modified (including, but not limited to, color changes or change in grade or drainage) except under such terms and conditions as the Executive Board and Unit Owner shall agree in writing or as otherwise provided under the Condominium Documents;

(v) Except for exterior improvements to be constructed by Declarant, its successors or assigns or a Participating Builder, any request for authorization and approval of an exterior improvements submitted to the Executive Board for review shall be accompanied by (A) an application and the plans and specifications (the "**Plans and**

Specifications") for such exterior improvement, both of which shall be in form and content reasonably acceptable to the Executive Board, (B) if required by the Executive Board, a damage deposit in an amount reasonably determined by the Executive Board, which damage deposit shall be held by the Executive Board, in escrow in accordance with a commercially reasonable escrow agreement to be provided by the Executive Board, and used to pay the costs associated with the repair of any damage caused by the construction and maintenance of such exterior improvement, and (C) an application fee of One Hundred Twenty-Five and 00/100 Dollars (\$125.00) to defray the cost of professional services that the Executive Board may reasonably incur to properly evaluate the Plans and Specifications provided by a Unit Owner with respect to the exterior improvement (the "**Review Fee**"). The Executive Board may waive the Review Fee on a case by case basis if the application for any such exterior improvement that does not require the Executive Board to incur any professional fees or services in connection with its review and evaluation of the Plans and Specifications. The Review Fee shall be non-refundable unless the applicant withdraws its application prior to the Executive Board incurring any professional fees or expenses in connection with its review and evaluation of the application. In the event a Unit Owner resubmits an amended application for a previously denied application, the Executive Board shall have discretion to waive the Review Fee. All Plans and Specifications submitted to the Executive Board shall be retained by the Executive Board and shall not be returned to the applicant, unless the Executive Board elects to do so;

(vi) Within sixty (60) days after the Unit Owner has submitted all the required Plans and Specifications and Review Fee to the Executive Board, the Executive Board shall notify the Unit Owner in writing whether such Plans and Specifications are either approved or disapproved. Any disapproval or objections shall be in writing and shall be detailed and shall include an explanation for the basis or reason for such disapproval or objections, together with such reasonable changes, modification or other alterations and recommendations as appropriate or practicable that would render the Plans and Specifications acceptable to the Executive Board and in compliance with the review and approval criteria established under this Declaration. In the event the Executive Board fails to approve or disapprove an Unit Owner's submission of the Plans and Specifications in writing within the aforementioned sixty (60) day period, then the Executive Board's approval shall be conclusively presumed to have been granted, provided, however that the aforesaid presumption shall not be deemed a waiver of the applicable provisions of this Declaration or be deemed to be the prior written approval of the Executive Board under any specific provision herein. No construction of the exterior improvements provided for in the submitted Plans and Specifications shall be commenced until the expiration of the aforementioned sixty (60) day period or the receipt of the Executive Board's written approval of the Plans and Specifications, whichever occurs first;

(vii) In the event the Executive Board shall disapprove any part of the Plans and Specifications as submitted in accordance with this Declaration, then the Unit Owner shall have the opportunity to revise its Plans and Specifications to incorporate such changes, modifications, additions or deletions, as applicable, and shall resubmit the revised Plans and Specifications to the Executive Board, if the Unit Owner so chooses, together with an additional Review Fee (unless such Review Fee is waived by the Executive Board pursuant to Section 9(aa)(v)), and the Executive Board shall have twenty (20) days within which to review such revised Plans and Specifications and to determine the Unit Owner's compliance with the

Executive Board's designated changes. In the event the Executive Board fails or neglects to advise the Unit Owner in writing of whether or not such revised Plans and Specifications are in compliance (or non-compliance) within the aforementioned twenty (20) day period, then the Executive Board's approval shall be conclusively presumed to have been granted; provided, however that the aforesaid presumption shall not be deemed a waiver of the applicable provisions of this Declaration or be deemed to be the prior written approval of the Executive Board under any specific provision herein. Any disapproval by the Executive Board of such revised and resubmitted Plans and Specification shall be communicated to the Unit Owner in a written response in accordance with the details required for the Executive Board's approval as provided in Subsection (viii) above;

(viii) Once the Executive Board has approved a Unit Owner's Plans and Specifications and the exterior improvements, then the Unit Owner shall not change, revise or otherwise modify the approved Plans and Specifications or the exterior improvements without first securing the Executive Board's written approval in the manner prescribed under this Section 9(u). The Executive Board shall endeavor to review such changes, revisions or other modifications within a shorter period of time than the aforementioned sixty (60) day period but shall not be required to do so;

(ix) If any Unit Owner believes that either the disapproval of any Plans and Specifications submitted by the Unit Owner to the Executive Board or the Executive Board's proposed changes to such Plans and Specifications that may be required for the Executive Board's approval, or any of the Pre-Approvals are arbitrary and capricious, then any such Unit Owner may, as its sole and exclusive remedy, submit such dispute to final and binding arbitration in accordance with the provisions of the Delaware Uniform Arbitration Act (the "**Arbitration Act**") and the rules of the American Arbitration Association applicable to such disputes, to the extent such rules are not inconsistent with the Arbitration Act. The fees of such arbitrator and all reasonable costs and expenses incurred by the Executive Board in defending its decision(s) shall be paid by the Unit Owner, unless the arbitrator specifically finds and rules that the Executive Board acted in an arbitrary, capricious and meritless manner, in which event the Unit Owner shall not be required to reimburse the Executive Board for its reasonable costs and expenses. In determining any question, matter, or dispute before such arbitrator, the arbitrator shall apply the provisions of this Declaration without varying therefrom in any respect, and shall not have the power or authority to add, modify, or otherwise change any of the provisions of this Declaration. The parties to any such arbitration agree to reasonably cooperate; to obtain the cooperation of their employees, agents and contractors, as applicable; to use reasonable efforts to supply as witnesses such employees, agents and contractors, as applicable; and to produce any relevant documents that may be required;

(x) Neither the Executive Board, nor its members, agents, employees, representatives, successors or assigns shall be liable or responsible for any damages to any Unit Owner or to any other person submitting Plans and Specifications to the Executive Board for approval or to any third party by reason of a mistake in judgment, negligence or nonfeasance arising out of or in connection with the approval, disapproval, or failure to approve any Plans and Specifications. Every person who submits Plans and Specifications to the Executive Board for approval, as provided herein, agrees, by submission of such Plans and Specifications, and every

Unit Owner or person claiming by or through the Unit Owner agrees, by acquiring title to any Unit or any interest in any Unit that it shall not initiate, commence or prosecute any action, claim or suit against the Executive Board, its members, agents, employees, representatives, successors, or assigns to recover any such damages, including, but not limited to, special, consequential or punitive damages with respect to any approval, denial or failure to approve any Plans and Specifications and such Unit Owner shall indemnify and hold the Executive Board and its members, agents, employees, representatives, successors and assigns harmless from and against any and all such damages; and

(v) Notwithstanding anything contained herein to the contrary, (1) the provisions contained in this Section 9(u) shall not apply to any exterior improvement constructed, maintained, repaired, replaced, marketed, or sold by Declarant or its successor or assigns, or a Participating Builder (2) Declarant and its successors and assigns and Participating Builder shall have the right to construct, maintain, repair, replace, market, or sell any exterior improvement of any kind or nature whatsoever, (3) any and all such exterior improvement constructed, maintained, repaired, replaced, marketed, or sold by Participating Builder, Declarant or its successor or assignees shall be deemed to have complied with the provisions of this Declaration, and (4) any and all such exterior improvement constructed, maintained, repaired, replaced, marketed, or sold by Participating Builder, Declarant or its successor or assignees are presumed to have been pre-approved by the Executive Board, without the need or obligation to obtain any approvals or authorizations from either the Executive Board or any Unit Owners.

10. Repair and Replacement Reserve. The Association shall create and maintain, in addition to any reserve for contingencies, a fully funded repair and replacement reserve (as defined in §81-103(39) of the Act) (the "**Repair and Replacement Reserve**") based upon a current reserve study (as defined in §81-103(40) of the Act) (the "**Reserve Study**") in accordance with the Act.

11. Restrictions on Sales and Leases of Units and Alienation of Units.

(a) No Severance of Ownership. No Unit Owner shall execute any deed, lease, mortgage, or other instrument conveying or mortgaging the title to his Unit without including therein the undivided interest of such Unit in the Common Elements, it being the intention hereof to prevent any severance of such combined ownership. Any such deed, mortgage, or other instrument purporting to affect one or more of such interests, without including all such interests, shall be deemed and taken to include the interest or interests, so omitted, even though the latter shall not be expressly mentioned or described therein. No part of the interests in the Common Elements of any Unit may be sold, leased, transferred, given, devised, or otherwise disposed of, except as part of the Unit to which such interests are appurtenant, or as part of a sale, lease, transfer, gift, devise or other disposition of such part of the interests in the Common Elements of all Units. The Common Elements are not subject to partition, and any purported conveyance, encumbrance, judicial sale, or other voluntary or involuntary transfer of an undivided or individual interest in the Common Elements made without the Unit to which that interest is allocated is void.

(b) Leases and Rental Agreements. No Unit Owner shall enter into a lease or any other agreement for the occupancy or use of a Unit (including, but not limited to, any

rental agreement that may be excluded under the Delaware Landlord Tenant Code under 25 Del. C. § 5102) except in accordance with this Declaration and any other covenants impacting the Property. Every Unit Owner shall provide to each tenant a copy of the Condominium Documents and any and all documents related to the governance, operation and rules of the Property, including, but not limited to, any Rules and Regulations, and shall deliver to or otherwise make available to the tenant a copy of any additions or revisions to the Rules and Regulations as such additions or revisions are adopted and noticed to the Unit Owners by the Executive Board. A tenant shall be bound to comply with the noticed Rules and Regulations, and the Unit Owner leasing to the tenant shall take all lawful action against a tenant who materially violates the noticed Rules and Regulations. By entering into a lease for a Unit, the Unit Owner of such Unit irrevocably appoints the Executive Board as attorney-in-fact coupled with an interest to enforce the noticed Rules and Regulations against the tenant of that lease in the event that the Unit Owner shall fail, within a reasonable time after written demand by the Executive Board, to take what the Executive Board reasonably regards as adequate enforcement action against the tenant in material violation of noticed Rules and Regulations. In the event of enforcement action (including any summary action for possession at law or a petition for injunctive relief in equity) under this subsection, the tenant shall have no resort to any defense based upon lack of contractual privity with the Executive Board. Any such lease shall also be in writing and is, and shall expressly provide, that such lease is subject to the provisions of the Act and the Condominium Documents and that any failure of the lessee to comply with such provisions shall constitute a default under the rental agreement.

12. Decoration and Fixturing of Interior Surfaces of Walls and Ceilings. Each Unit Owner shall have the right, at any time and from time to time, to install, at such Owner's own cost and expense, such decorations, additions, fixtures, and coverings (including but not limited to, painting, finishing, wall papering and carpeting) to the surfaces of walls and ceilings which face the interior of such Owner's Unit. All window coverings must appear white or "off white" when viewed from the exterior.

13. Creation of Executive Board and Initial Members of the Executive Board. The names of the initial members of the Executive Board to serve until their successors are chosen and qualified pursuant to the Bylaws are:

- (a) Tom Tipton
- (b) Morin Stegall
- (c) Jaime Zolper

14. Encroachments. If any portion of the Common Elements now or subsequently encroaches upon any Unit, or if any Unit now or subsequently encroaches upon any other Unit or upon any portion of the Common Elements, as a result of the construction of any Unit or if any such encroachment shall occur after the recording of this Declaration as a result of settling or shifting of any Unit, a valid and perpetual and non-exclusive easement for such encroachment and for the maintenance, repair, reconstruction and replacement of the same shall exist so long as such Unit shall stand. In the event any Unit, any adjoining Unit, or any adjoining Common Elements shall be partially or totally destroyed as a result of fire or other casualty or as a result of condemnation or eminent domain proceedings, and then re-built; encroachments of parts of the Common Elements upon any Unit, or of any Unit upon any other Unit or any portion of the

Common Elements, or any portion of the Common Elements or any Unit, due to such rebuilding, shall be permitted, and valid perpetual easements for such encroachments and for the maintenance, repair, reconstruction and replacement of the same shall exist so long as such reconstructed Unit or Common Element shall stand.

15. Pipe Ducts, Cables, Wires, Conduits, Public Utility Lines and Other Common Elements Located Inside of Units: Support. Each Unit Owner shall have a perpetual and non-exclusive easement in common with the Owners of all other Units to use all pipes, wires, ducts, cables, conduits, public utility lines and other Common Elements located in any of the other Units and serving such Owner's Unit. Each Unit shall be subject to a perpetual and non-exclusive easement in favor of the Owners of all other Units to use pipes, ducts, cables, wires, conduits, public utility lines and other Common Elements serving such other Units and located in such Unit. The Executive Board or its representative shall have a right of access to each Unit to inspect the same, to remove violations therefrom and to maintain, repair or replace the Common Elements contained therein or elsewhere in the Units.

16. Units Subject to Easements for Ingress and Egress Through General Common Elements; Other Unit Owner Easements. Subject to §§81-302(a)(6) and 81-312 of the Act, each Unit Owner shall have a perpetual and non-exclusive easement in common with the Owners of all other Units for ingress and egress through all General Common Elements. Each Unit shall be subject to a perpetual and non-exclusive easement for ingress and egress through all General Common Elements by persons lawfully using or entitled to same. Subject to the terms of this Declaration and the Rules and Regulations, each Unit Owner shall have a perpetual and non-exclusive easement to use the Common Elements and all real estate that must become Common Elements for the purposes for which they were intended.

17. Units Subject to Construction Easements on Common Elements. Each Unit shall be subject to a perpetual and non-exclusive easement of ingress and egress through all Common Elements, and a perpetual and non-exclusive easement for design, construction, maintenance, repairs and replacement of all improvements (including, but not limited to, utilities) to be built on the Common Elements and for the construction, maintenance, repairs, and completion of certain Units, by all construction personnel, personnel of Declarant, each Participating Builder, the Executive Board, and the Unit Owners and their respective employees, agents, and invitees, together with the use of construction equipment, tools and services associated therewith.

18. Units Subject to Condominium Documents. All present and future Unit Owners, lessees, mortgagees, tenants and occupants of Units shall be subject to, and shall comply with, the provisions of the Condominium Documents. The acceptance of a deed of conveyance or other transfer document or the entering into of a lease or the entering into occupancy of any Unit shall constitute an agreement that the provisions of the Condominium Documents are accepted and ratified by such Owner, tenant, or occupant and all of such provisions shall be deemed and taken to be enforceable equitable servitudes and covenants running with the Land and shall bind any person having at any time any interest or estate in such Unit, as though such provisions were recited and stipulated at length in each and every deed or conveyance or lease thereof.

19. Unit Ownership and Ownership of Common Elements. Each Unit Owner

shall own such Owner's Unit and the undivided Percentage Interest of such Unit in the Common Elements.

20. Amendment of Declaration.

(a) During the Declarant Control Period, no amendment may be made to any one or more of the Condominium Documents without the written consent of Declarant, which consent may be granted or withheld for any reason or no reason whatsoever, in Declarant's sole subjective and absolute discretion. Thereafter, the Condominium Documents shall be amended in accordance with the terms of this Declaration.

(b) Notwithstanding the provisions of Section 20(a) hereof, or any law, custom or usage to the contrary, so long as Declarant owns one or more Units subject to this Declaration or has the right to expand the Condominium Regime in accordance with the Condominium Documents, including, but not limited to, Sections 5 and 6 hereof, no amendment to any one or more of the Condominium Documents shall be adopted which, in Declarant's sole subjective and absolute opinion, may materially or adversely interfere with or affect (1) the lease, sale, other disposition or use of any one or more of the Units owned by Declarant or a Participating Builder or proposed Units, including, but not limited to, any Expansion Unit(s), (2) the value, use, or marketability of any one or more of the Units owned by Declarant or a Participating Builder or proposed Units, including, but not limited to, any Expansion Unit(s), (3) any expansion rights granted to Declarant under any one or more of the Condominium Documents, or (4) the financing available to Declarant with respect to any of the foregoing.

(c) Notwithstanding the provisions of Section 20(a) hereof, or any law, custom or usage to the contrary, so long as Declarant owns one or more Units subject to this Declaration or has the right to expand the Condominium Regime in accordance with the Condominium Documents, including, but not limited to, Sections 5 and 6 hereof, Declarant also shall have the absolute right, power and authority and shall have an irrevocable power of attorney, coupled with an interest, at any time and from time to time, in its sole subjective and absolute discretion, to amend any one or more of the Condominium Documents to cause each or all of them to be amended by filing with the Recorder's Office instruments and plans as permitted hereunder or as necessary to (1) correct any clerical or typographical errors, ambiguities, title questions or defects, or conflicts with or to comply with any and all applicable laws and legal requirements, (2) achieve compliance with the requirements of Federal National Mortgage Association, Federal Home Loan Mortgage Corporation, Federal Housing Authority, Veterans Administration or other governmental agency or their successors or (3) conform the Condominium Documents to be consistent with the provisions required or allowed by the Act.

(d) Subject to Sections 20(a), (b) and (c) hereof and Declarant's right to expand the Condominium Regime in accordance with the Condominium Documents, including, by way of example and not of limitation, Sections 5 and 6 hereof, captioned "Expansion" and "Adjustments to Percentage Interests," respectively, and any and all rights granted to or reserved by Declarant in the aforesaid Sections 5 and 6, this Declaration may be amended by the vote of a Majority of the Unit Owners, cast in person or by proxy at a meeting duly held in accordance with the provisions of the Bylaws; provided, however, that any action to terminate the legal status of the Condominium must be approved by Unit Owners holding no less than eighty percent (80%) of

the Percentage Interests and no less than sixty-seven percent (67%) of the Eligible Mortgage Holders, and, provided, further, that any such amendments of a material nature ("**Material Amendments**") must be approved by Unit Owners holding no less than sixty-seven percent (67%) of the Percentage Interests. For purposes of this Section 20(d) the term "**Material Amendments**" shall be defined to mean a change or amendment to this Declaration pertaining to any one or more of the following:

- (1) Voting rights;
- (2) Any assessment increase which is more than 25% of the previously applicable assessment, or the priority of assessment liens;
- (3) Reserves for maintenance, repair, and replacement of Common Elements;
- (4) Responsibility for maintenance and repairs;
- (5) Reallocation of interests in the General Common Elements or Limited Common Elements, or the rights to their use;
- (6) Redefinition of any Unit boundaries;
- (7) Convertibility of Units into Common Elements or, vice versa;
- (8) Expansion or contraction of the Condominium, or the addition, annexation, or withdrawal of property to or from the Condominium;
- (9) Hazard or fidelity insurance or bonds requirements;
- (10) Imposition of any new restriction relating to the leasing of Units;
- (11) A decision by the Association of Owners to establish self-management, if professional management had been required previously by the Condominium Documents, Department of Housing and Urban Development, Veterans Administration, Federal National Mortgage Association, or Federal Home Loan Mortgage Corporation, or an Eligible Mortgage Holder;
- (12) Restoration or repair of any Units (after damage or a partial condemnation) in a manner other than that specified in the Condominium Documents;
- (13) Any action to terminate the legal status of the Condominium after substantial destruction or condemnation occurs;
- (14) Any provisions that expressly benefit mortgage holders, insurers, or guarantors;

- (15) Any reallocation of interests in the Common Elements resulting from a partial condemnation or partial destruction of the Condominium;
- (16) Assessments, assessment liens or subordination of such liens;
- (17) Rights to use of the Common Elements; or
- (18) Imposition of any right of first refusal or any restriction on the right of a Unit Owner to sell, transfer, or otherwise convey his Unit.

Subject to Sections 20(a), (b) and (c) hereof and Declarant's right to expand the Condominium Regime in accordance with the Condominium Documents, including, by way of example and not of limitation, Sections 5 and 6 hereof, captioned "Expansion" and "Adjustments to Percentage Interests", respectively, and any and all rights granted to or reserved by Declarant in the aforesaid Sections 5 and 6, no such amendment shall be effective until duly recorded in the Recorder's Office; provided, however, that the Percentage Interests shall not be changed except by unanimous consent of all the Unit Owners affected thereby, and the mortgagees of those affected Units, such change being evidenced by an appropriate amendatory declaration to such effect, duly executed and recorded in the Recorder's Office. The failure of an Eligible Mortgage Holder to respond to any such proposed notice of an amendment as aforesaid sent by certified mail, return receipt requested, within sixty (60) days after notice issues to such Eligible Mortgage Holder shall be deemed to be a consent of such Eligible Mortgage Holder to such amendment. Each such amendment shall be effective upon recordation of the same in the Recorder's Office of an appropriate instrument setting forth such amendment.

(e) If any amendment is necessary in the judgment of the Executive Board to cure any ambiguity or to correct or supplement any provision of this Declaration or the Bylaws which is incorrect, defective or inconsistent with any other provision hereof or thereof or with the Act, or to change, correct or supplement any aspect of the Declaration Plan which is incorrect, defective, or similarly inconsistent, the Executive Board may effect an appropriate corrective amendment without the approval of the Unit Owners as long as the Executive Board shall have received an opinion of counsel (as to any amendment pertaining to this Declaration or the Bylaws) or of an independent registered architect or licensed professional engineer (as to any such amendment pertaining to the Declaration Plan); and, in either case, such opinion shall and must recommend and approve the proposed amendment; provided, however, that any such amendment shall not be effective unless all of the Eligible Mortgage Holders shall have been notified of the same and no less than fifty-one percent (51%) of all Eligible Mortgage Holders shall have consented to the same. The failure of an Eligible Mortgage Holder to respond to a notice of an amendment to cure an ambiguity or to correct or supplement any provision as aforesaid sent by certified mail, return receipt requested, within sixty (60) days after notice issues to such Eligible Mortgage Holder shall be deemed to be a consent of such Eligible Mortgage Holder to such amendment. Each such amendment shall be effective upon recordation of the same in the Recorder's Office of an appropriate instrument setting forth such amendment.

(f) If there are one or more amendments to this Declaration, the Declaration Plan or the Bylaws, all references thereafter to this Declaration, the Declaration Plan

and the Bylaws (unless otherwise specifically designated) shall mean this Declaration, the Declaration Plan or the Code of Regulation as amended to the date of such reference. Any amendment to this Declaration, the Declaration Plan and the Bylaws shall be deemed in proper form for filing and recording when such amendment is executed by the President of the Association and when accompanied by certification that such amendment has been duly enacted in accordance with the provisions of this Declaration or the Bylaws, as the case may be.

(g) Notwithstanding the foregoing provisions for the amendment of this Declaration, Declarant, its successors and assigns, shall have an irrevocable power of attorney, coupled with an interest, for the purpose of amending any one or more of the Condominium Documents, including, but not limited to, the applicable Schedules of this Declaration attached hereto and the Declaration Plan under the reservation and powers given unto Declarant in Sections 5 and 6 of this Declaration, for the purposes stated in any one or more of the said Sections 5 and 6, respectively. The provisions for annexing land and improvements by Declarant and all other provisions of said Sections 5 and 6, respectively, are incorporated into this Section by reference as though each and every statement contained in said Sections 5 and 6, respectively, were fully set forth herein.

21. No Partition of Common Elements/Percentage Interests. The Common Elements are not subject to partition, and any purported conveyance, encumbrance, judicial sale, or other voluntary or involuntary transfer of an undivided interest in the Common Elements made without the Unit to which that interest is allocated is void. The Percentage Interests shall not be separated from the Unit to which they appertain and shall be deemed conveyed, leased or encumbered with the Unit though the interest is not expressly mentioned or described in the conveyance or other instrument.

22. No Revocation. Except in the event of substantial destruction as provided in the Bylaws and the Act, the dedication of the Property under the Act shall not be removed, waived, revoked, or terminated unless all of the Unit Owners and the mortgagees of all of the mortgages covering the Units and all other affected judgment and other lien holders with respect to the Units unanimously agree to such removal, revocation, waiver, or termination.

23. Eminent Domain. Whenever all or part of the Common Elements shall be taken, injured or destroyed by eminent domain, the Association shall represent the Unit Owners in negotiations, settlements and agreements with the condemning authority. Each Unit Owner appoints the Association as attorney-in-fact for this purpose under an irrevocable power of attorney coupled with an interest to effectuate, execute, acknowledge and deliver any and all agreements or other documents that may be required or necessary to consummate and complete any such settlements and/or agreements with the condemning authority or other third parties; and each Unit Owner shall be deemed to have agreed and covenanted to execute such further instruments, agreements, or documents, if any, as may be required by the Association, its successors or assigns, to properly accomplish the purposes of this Section. Each Unit Owner shall be entitled to notice thereof, but in any proceedings for the determination of damages, such damages shall be determined for such taking, injury, or destruction as a whole and not for each Unit Owner's interest therein. The award or proceeds of settlement shall be payable to the Association for the use and benefit of the Unit Owners and their mortgagees as their interests may appear, and as otherwise

provided in the Bylaws.

24. Invalidity. The invalidity of any provision of this Declaration shall not be deemed to impair or affect in any manner the validity, enforceability or effect of the remainder of this Declaration, and, in such event, all of the other provisions of this Declaration shall continue in full force and effect as if such invalid provision had never been included herein.

25. Waiver. No provision contained in this Declaration shall be deemed to have been abrogated or waived by reason of any failure to enforce the same, irrespective of the number of violations or breaches which may occur.

26. Gender. The use of the masculine gender in this Declaration shall be deemed to refer to the feminine gender and neuter gender and the use of the singular shall be deemed to refer to the plural, and vice versa, whenever the context so requires.

27. Successors and Assigns. Whenever "Lewes Attainable Housing, LLC" or "Declarant" is used such reference shall also refer to its successors or assigns.

28. Captions. The captions herein are inserted only as a matter of convenience and for reference, and in no way define, limit, or describe the scope of this Declaration or the intent of any provision thereof.

29. Joinder of Mortgagee. By means of the Mortgagee Joinder and Subordination Addendum attached hereto and incorporated by reference herein, the Lender (as defined in such Addendum) joins in the execution of this Declaration to acknowledge both (a) the Lender's consent to the establishment with respect to the Property of the Condominium Regime hereby documented and (b) the subordination of the Lender's existing mortgage lien with respect to the Property to the terms of the Condominium Documents, as amended from time to time in accordance with the Condominium Documents.

30. Assessments and Taxes. Each Unit and its Percentage Interest in the Common Elements shall be assessed and taxed for all purposes as a separate parcel of real estate in accordance with §81-105 of the Act and any such real estate taxes and assessments applicable to each such Unit shall be the sole responsibility of such Unit Owner.

31. Declarant's Right to Amend. Notwithstanding anything contained in this Declaration to the contrary, so long as Declarant holds title to one or more of the Units which are being offered for sale or has the right to expand the Condominium Regime in accordance with the Condominium Documents, including, but not limited to, Sections 5 and 6 hereof, Declarant reserves the absolute right, power and authority and shall have an irrevocable power of attorney, coupled with an interest, to change the interior design and arrangement of, or alter the boundaries between Units owned by Declarant at any time and from time to time after this Declaration or any amendment thereto is filed in the Recorder's Office. To accomplish any of the foregoing, Declarant shall have the right to amend any one or more of the Condominium Documents so as to reflect such change, without previously or subsequently obtaining the consent, approval, authorization, signature or other action or non-action of the Association, the Executive Board, any Unit Owner, any Eligible Mortgage Holder, or any other mortgagee or any occupant of the Property or any Unit.

Notwithstanding any law, custom or usage to the contrary, Declarant also shall have the absolute right, power and authority and shall have an irrevocable power of attorney, coupled with an interest, to amend any one or more of the Condominium Documents to cause each or all of them to be amended by filing with the Recorder's Office instruments and plans as permitted hereunder or as necessary to correct any clerical or typographical errors, ambiguities, title questions or defects, or conflicts with or to comply with any and all applicable laws and legal requirements. To accomplish any of the foregoing, Declarant shall have the right to amend any one or more of the Condominium Documents so as to reflect such correction, without previously or subsequently obtaining the consent, approval, authorization, signature or other action or non-action of the Association, the Executive Board, any Unit Owner, any Eligible Mortgage Holder, any other mortgagee or any occupant of the Property or any Unit.

32. Declarant Easements. Declarant and each Participating Builder shall have a perpetual, free and non-exclusive easement through the Common Elements as may be reasonably necessary for the purpose of discharging Declarant's obligations or exercising Declarant's or the Participating Builder's special declarant or other reserved rights, whether arising under the Act or reserved in this Declaration.

33. Perpetuities. If any of the covenants, conditions, easements, restrictions, or other provisions of any one or more of the Condominium Documents shall be unlawfully void, or voidable for violation of the rule against perpetuities, then such provisions shall continue only until twenty-one (21) years after the death of the last survivor of the now living descendants of Donald Trump, current President of the United States of America.

[END OF TEXT - SIGNATURE PAGE FOLLOWS]

IN WITNESS WHEREOF, Declarant has caused this Declaration to be executed, under seal, as of the date and year first written above.

**SEALED AND DELIVERED
IN THE PRESENCE OF**

LEWES ATTAINABLE HOUSING, LLC, a Delaware
limited liability company

By: [Signature] (SEAL)

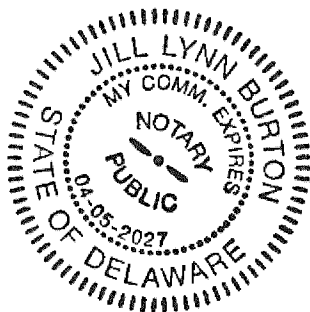
Name: Preston A. Schell

Title: Manager

STATE OF DELAWARE)
) SS.
COUNTY OF SUSSEX)

BE IT REMEMBERED, that on the 26th day of June, 2024, personally came before me, the Subscriber, a Notary Public for the State of Delaware, Preston A. Schell, as a Manager of Lewes Attainable Housing, LLC, a Delaware limited liability company, party to this Indenture, known to me personally to be such and acknowledged this Indenture to be their act and deed and the act and deed of the Manager on behalf of the company.

GIVEN under my Hand and Seal of Office, the day and year aforesaid.



Jill Lynn Burton
Notary Public

Jill Lynn Burton
Print Name

My Commission Expires: 4-5-2027

DECLARATION OF
DUTCHMAN'S HARVEST CONDOMINIUM

Mortgagee Joinder and Subordination Addendum

Wilmington Savings Fund Society, FSB and its successors and assigns (the "**Lender**"), as the holder of two (2) mortgage liens currently of record with respect to the Property, hereby joins in the execution of this Declaration to (a) acknowledge and document its consent to the establishment with respect to the Property of the Condominium Regime hereby documented and (b) acknowledge and document that, coincident with the recordation of this Declaration in the Recorder's Office, such mortgage liens shall be subordinate in all respects to the Condominium Documents, including, but not limited to, this Declaration, and the Code Regulations, Bylaws, the Declaration of Easement and the Declaration Plan and the terms thereof, including any amendments (including, but not limited to, any solely for annexation and/or expansion thereof) as provided therein; provided, however, the terms and conditions of the Condominium Documents that govern residential unit owner mortgages do not apply to Lender.

Witness:

**WILMINGTON SAVINGS FUND SOCIETY,
FSB**

Rula Feasel

By: [Signature] (SEAL)

Name: Stephen Taylor
Title: Vice President

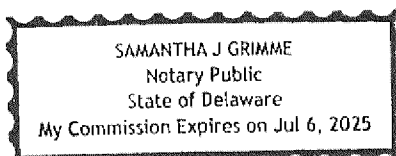
STATE OF DELAWARE :

: ss.

COUNTY OF SUSSEX :

THIS INSTRUMENT was acknowledged before me on this 24 day of June, 2025, by VP, the Steve Taylor of Wilmington Savings Fund Society, FSB, and being personally known to me he did aver that he is the Trustee of such trust and that his act in executing this Mortgagee Joinder and Subordination Agreement constitutes the act and deed of Wilmington Savings Fund Society, FSB.

GIVEN under my Hand and Seal of Office, the day and year aforesaid.



Samantha Grimme
Notary Public

[Signature]
NOTARY PUBLIC

PRINT NAME: Samantha Grimme

DECLARATION OF
DUTCHMAN'S HARVEST CONDOMINIUM
CONDOMINIUM

LIST OF SCHEDULES

Schedule A	Land Description
Schedule B	Improvements
Schedule C	Percentage Interest
Schedule D	Projected Percentage Interest If Expansion of All Expansion Unit(s) Occurs
Schedule E	Declaration Of Easement Together With An Irrevocable Power Of Attorney Coupled With An Interest
Schedule F	Irrevocable Power Of Attorney Coupled With An Interest
Schedule G	Easement Agreements

DECLARATION OF
DUTCHMAN'S HARVEST CONDOMINIUM

SCHEDULE "A"

ALL that piece or parcel of land, hereinafter described, situate, lying and being on the southeasterly side of Savannah Road and being located in Lewes & Rehoboth Hundred, Sussex County, Delaware, being all of Parcels 36.07, as shown on a plat entitled "Lewes Attainable Housing, LLC. – Dutchman's Harvest," completed by Davis Bowen & Friedel, Inc., dated March 2022; said piece or parcel being more particularly described as follows:

BEGINNING at point formed by the intersection of southeasterly right-of-way line of Savannah Road, at the westerly corner of lands of, now or formerly, Ronald & Carol Garner, as recorded in the Office of the Recorder of Deeds in and for Sussex County and the State of Delaware; said beginning point being coordinated on the Delaware State Grid System as North: 278,060.07 feet, East: 731,987.08 feet; thence,

1) leaving said right-of-way line of Savannah Road and running with said lands of Garner, the following 2 courses and distances, South 70 degrees 30 minutes 18 seconds East 60.11 feet to an iron rod with cap to be set at a point, thence running,

2) South 50 degrees 49 minutes 25 seconds East 223.15 feet to an iron rod with cap to be set at a point at lands now or formerly of Oscar H. III & Mary H. Warrington, thence running,

3) by and with said lands of Warrington the following 2 courses and distances, South 42 degrees 30 minutes 01 seconds West 25.06 feet to a point, thence running,

4) South 50 degrees 53 minutes 25 seconds East 195.19 feet to an iron rod with cap to be set at a point at other lands of Oscar H. III & Mary H. Warrington, thence running,

5) by and with said other lands of Warrington, South 48 degrees 22 minutes 00 seconds East 465.54 feet to a point on the northwesterly line of lands now or formerly of Lewes Senior Living Partners, LLC., thence,

6) running by and with said lands of Lewes Senior Living Partners, LLC., South 42 degrees 06 minutes 29 seconds West 405.56 feet to a point along the northeasterly line of Henlopen Gardens, thence running,

7) by and with the northeasterly line of Henlopen Gardens Subdivision, North 47 degrees 53 minutes 31 seconds West 920.01 feet to a point along the southeasterly right-of-way line of Savannah Road, thence running,

8) by and with said right-of-way line of Savannah Road, North 39 degrees 32 minutes 12 seconds East 268.47 feet to a point, thence,

9) North 38 degrees 48 minutes 16 seconds East 114.01 feet to the point and place of beginning;
CONTAINING 8.604 acres of land, more or less.

DECLARATION OF
DUTCHMAN'S HARVEST CONDOMINIUM

SCHEDULE "B"

Improvements

The Land (but expressly excluding the Expansion Area) is further improved as more particularly shown on the Declaration Plan by paved driveways and parking areas, paved walkways and landscaping and lighting fixtures, as well as sanitary sewer systems, drainage systems, water, electrical, telephone, conduits and lines (title to which systems may, in certain instances, remain vested in the utility company providing services through such systems) and infrastructure currently constructed to service **Units 101 through 110 inclusive**, and all such improvements being constructed in accordance with the Declaration Plan.

DECLARATION OF
DUTCHMAN'S HARVEST CONDOMINIUM

SCHEDULE "C"

Percentage Interest

The following represent the respective percentages of ownership in the Common Elements for each Unit which shall be utilized for purpose of determining voting rights and the percentage share of each Unit for the expenses of, and relating to the various rights in, the Common Elements (which are being determined and calculated based on the Unit type of each Unit which is assigned based upon the various floor plan styles of the various Units, irrespective of any market or sales value) and shall be adjusted based on the actual number and type of Units constructed during each Expansion Phase.

<u>Unit Identifying #</u>	<u>Percentage</u>
101	10%
102	10%
103	10%
104	10%
105	10%
106	10%
107	10%
108	10%
109	10%
110	10%
Total	100%

Between the recordation of this Declaration and the completion of all the Units, each Unit Owner's percentage of ownership in the Common Elements shall be adjusted, as applicable, in accordance with the terms of this Declaration and this Schedule shall be amended as provided under this Declaration to document such percentage interests.

*Pursuant to 25 Del. C. § 81-07(e), except for minor variations due to rounding, the sum of the undivided interests in the common elements allocated at any time to all the units must equal 1 if stated as a fraction or 100 percent if stated as a percentage. In the event of any discrepancy between an allocated interest and the result derived from application of the pertinent formula, then the allocated interest prevails.

DECLARATION OF
DUTCHMAN'S HARVEST CONDOMINIUM

SCHEDULE "D"

Projected Percentage Interest If
Expansion of All Expansion Unit(s) Occurs

The Condominium is an expandable condominium which will consist of up to a maximum of one hundred forty (140) Units to be developed in the Expansion Phases.

As each subsequent Unit located in any one or more of the Expansion Phases is built and completed, the applicable Units shall be added to the Condominium Regime as provided for in the Condominium Documents. As each such Unit located in any such Expansion Phase is added to the Condominium Regime, each Unit Owner's percentage of ownership in the Common Elements will decrease pro rata in accordance with the Unit type as set forth in Sections 5 and 6 of this Declaration, and as designated below, so that upon the completion of all the Expansion Unit(s), each Unit Owner's percentage of ownership in the Common Elements shall be as follows:

<u>Unit Identifying #</u>	<u>Percentage</u>
1	.714%
2	.714%
3	.714%
4	.714%
5	.714%
6	.714%
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133	.714%
134	.714%
135	.714%
136	.714%
137	.714%
138	.714%
139	.714%
140	.714%
TOTAL	100%

*Pursuant to 25 Del. C. § 81-07(e), except for minor variations due to rounding, the sum of the undivided interests in the common elements allocated at any time to all the units must equal 1 if stated as a fraction or 100 percent if stated as a percentage. In the event of any discrepancy between an allocated interest and the result derived from application of the pertinent formula, then the allocated interest prevails.

DECLARATION OF
DUTCHMAN'S HARVEST CONDOMINIUM

SCHEDULE "E"

Declaration of Easement

Tax Parcel Number:

Prepared By and Return To:

Jonathan E. Horner, Esq.

20184 Phillips Street

Rehoboth Beach, DE 19971

**DECLARATION OF EASEMENT TOGETHER WITH AN
IRREVOCABLE POWER OF ATTORNEY COUPLED WITH AN INTEREST**

This Declaration of Easement Together With An Irrevocable Power Of Attorney Coupled With An Interest (this "**Declaration of Easement**") made effective this _____ day of _____, 202____, is reserved by LEWES ATTAINABLE HOUSING, LLC, a Delaware limited liability company, its successors and assigns ("**Declarant**").

RECITALS

WHEREAS, Declarant is the owner of certain real property located in the City of Lewes, Sussex County, Delaware, which property is more particularly described in **Exhibit "A"** attached hereto and made a part hereof; and

WHEREAS, said property is to be submitted by Declarant to a plan of condominium ownership under the Delaware Uniform Common Interest Ownership Act, 25 Del. C. §81-101, et seq., as amended (hereinafter referred to as the "**Act**"), by, and in accordance with, the Declaration Of Dutchman's Harvest Condominium (the "**Declaration**") to be filed of record in the Office of the Recorder of Deeds, in and for, Sussex County, Delaware (the "**Recorder's Office**"), after the filing of this Declaration of Easement; and

WHEREAS, any term or definition not otherwise expressly defined herein shall have the meaning and definition as provided in the Declaration; and

WHEREAS, as of the date hereof, Declarant has constructed the Initial Unit(s); and

WHEREAS, the Declaration, in Sections 5 and 6 of the Declaration, captioned "Expansion" and "Adjustments to Percentage Interests", respectively, reserves to Declarant the right, *inter alia*, by and unto itself to (1) annex into the land and the improvements constituting the Property of the Condominium; and thereby to submit to each and every of the provisions of the Declaration and

the Act and the Condominium Regime, all or any portion of the Expansion Area, including, but not limited to, the Expansion Unit(s), and (2) change the location of any one or more of the proposed Expansion Unit(s) in order to improve views to and from the Units, improve parking areas and harmonize the Property to the sewer, water and other utilities service distribution plans; and

WHEREAS, it is intended that the Common Elements as defined in the Declaration be subject to this Declaration of Easement in order to facilitate the possible minor relocation of said Units.

NOW, THEREFORE, in consideration of the matters hereinabove set forth:

DECLARATION OF EASEMENT

Declarant hereby reserves the exclusive, free, perpetual right, privilege and easement (but not the obligation) to (1) annex into the land and the improvements constituting the Property of the Condominium; and thereby to submit to each and every of the provisions of the Declaration, the Act and the Condominium Regime, all or any portion of the Expansion Area, including, but not limited to, any one or more of the Expansion Unit(s), (2) change the location of any one or more of the Expansion Unit(s) in order to improve views to and from the Units, improve parking areas and harmonize the Property to the sewer, water and other utilities service distribution plans, (3) construct (i) one or more of the Expansion Unit(s) as delineated on the Declaration Plan, and/or (ii) all of the necessary parking lots, walks and other appurtenances (including, but not limited to, utilities and roadways) requisite to service all or any portion of the Expansion Area, including, but not limited to, any one or more of the Expansion Unit(s), and (4) provide for the necessary ingress and egress to the Expansion Area, including, but not limited to, any one or more of the Expansion Unit(s), together with such other rights, privileges, licenses, easements and rights-of-ways as may be deemed necessary or desirable to submit all or any portion of the Expansion Area, including, but not limited to, any one or more of the Expansion Unit(s), to the Condominium Regime and the Act as contemplated and provided for under the Declaration, Declaration Plan and Bylaws.

This reservation of easement shall be perpetual during the continued existence of the Condominium.

This reservation of easement shall run with the Land and shall be binding upon each Unit Owner and mortgagee of a Unit in the Condominium and their respective heirs, personal representatives, successors and assigns and shall be deemed to have been reserved by the Declarant, its successors and assigns, an irrevocable power of attorney coupled with an interest, to effectuate, execute, acknowledge and deliver any such amendment; and each such Unit Owner and mortgagee shall be deemed to have agreed and covenanted to execute such further instruments, if any, as may be required by the Declarant, its successors or assigns, to properly accomplish the purposes of this Declaration of Easement.

[SIGNATURE PAGE TO FOLLOW]

IN WITNESS WHEREOF, the Declarant has caused its name and its seal to be affixed hereto the day and year first above-written.

**SEALED AND DELIVERED
IN THE PRESENCE OF**

LEWES ATTAINABLE HOUSING, LLC, a Delaware
limited liability company

By: _____ (SEAL)
Name: Preston A. Schell
Title: Manager

STATE OF DELAWARE)
) SS.
COUNTY OF SUSSEX)

BE IT REMEMBERED, that on the ____ day of _____, 202__, personally came before me, the Subscriber, a Notary Public for the State of Delaware, Preston A. Schell, as Manager of Lewes Attainable Housing, LLC, a Delaware limited liability company, party to this Indenture, known to me personally to be such and acknowledged this Indenture to be their act and deed and the act and deed of the Manager on behalf of the company.

GIVEN under my Hand and Seal of Office, the day and year aforesaid.

Notary Public

Print Name

My Commission Expires: _____

EXHIBIT "A" to Schedule "E"

LEGAL DESCRIPTION

ALL that piece or parcel of land, hereinafter described, situate, lying and being on the southeasterly side of Savannah Road and being located in Lewes & Rehoboth Hundred, Sussex County, Delaware, being all of Parcel 36.07, as shown on a plat entitled "Lewes Attainable Housing, LLC. – Dutchman's Harvest," completed by Davis Bowen & Friedel, Inc., dated March 2022; said piece or parcel being more particularly described as follows:

BEGINNING at point formed by the intersection of southeasterly right-of-way line of Savannah Road, at the westerly corner of lands of, now or formerly, Ronald & Carol Garner, as recorded in the Office of the Recorder of Deeds in and for Sussex County and the State of Delaware; said beginning point being coordinated on the Delaware State Grid System as North: 278,060.07 feet, East: 731,987.08 feet; thence,

1) leaving said right-of-way line of Savannah Road and running with said lands of Garner, the following 2 courses and distances, South 70 degrees 30 minutes 18 seconds East 60.11 feet to an iron rod with cap to be set at a point, thence running,

2) South 50 degrees 49 minutes 25 seconds East 223.15 feet to an iron rod with cap to be set at a point at lands now or formerly of Oscar H. III & Mary H. Warrington, thence running,

3) by and with said lands of Warrington the following 2 courses and distances, South 42 degrees 30 minutes 01 seconds West 25.06 feet to a point, thence running,

4) South 50 degrees 53 minutes 25 seconds East 195.19 feet to an iron rod with cap to be set at a point at other lands of Oscar H. III & Mary H. Warrington, thence running,

5) by and with said other lands of Warrington, South 48 degrees 22 minutes 00 seconds East 465.54 feet to a point on the northwesterly line of lands now or formerly of Lewes Senior Living Partners, LLC., thence,

6) running by and with said lands of Lewes Senior Living Partners, LLC., South 42 degrees 06 minutes 29 seconds West 405.56 feet to a point along the northeasterly line of Henlopen Gardens, thence running,

7) by and with the northeasterly line of Henlopen Gardens Subdivision, North 47 degrees 53 minutes 31 seconds West 920.01 feet to a point along the southeasterly right-of-way line of Savannah Road, thence running,

8) by and with said right-of-way line of Savannah Road, North 39 degrees 32 minutes 12 seconds East 268.47 feet to a point, thence,

9) North 38 degrees 48 minutes 16 seconds East 114.01 feet to the point and place of beginning;
CONTAINING 8.604 acres of land, more or less.

DECLARATION OF
DUTCHMAN'S HARVEST CONDOMINIUM

SCHEDULE "F"

Irrevocable Power of Attorney

Tax Map Parcel Number: [TPN] Unit_____

Prepared By and Return To:

IRREVOCABLE POWER OF ATTORNEY COUPLED WITH AN INTEREST

DUTCHMAN'S HARVEST CONDOMINIUM

KNOW ALL MEN BY THESE PRESENTS, that, for the period commencing on the date hereof and ending on the date which is twenty (20) years after the date hereof (or such longer period as provided under Section 2 (c) of the Declaration referenced below), I/we, _____ owners of Unit _____ (the "**Unit**") in Dutchman's Harvest Condominium (the "**Condominium**") hereby make constitute and appoint Lewes Attainable Housing, LLC, a Delaware limited liability company ("**Declarant**"), and its successors and assigns, to be my/our true and lawful attorney, and in my/our name, place and stead and in my/our behalf, and hereby grant Declarant, and its successors and assigns, the absolute right, power and authority, together with an irrevocable power of attorney, coupled with an interest, to do and execute all or any of the following acts, deeds and things, at any time and from time to time:

1. To execute, acknowledge, deliver and record any one or more instruments, documents, amendments or plans as may be required to amend, modify, or otherwise change any one or more of the Condominium Documents, including, but not limited to, the Declaration Plan, Declaration, Bylaws, Rules and Regulations and/or Declaration of Easement, for any one or more of the purposes expressly provided under any one or more of the Condominium Documents, including, but not limited to, under the Declaration in Section 4, captioned "Units", Section 5, captioned "Expansion", Section 6, captioned "Adjustments to Percentage Interests", Section 20, captioned "Amendment of Declaration", and Section 31, captioned "Declarant's Right to Amend", and under the Bylaws in Article XI, captioned "Amendments to Bylaws" and Article XIV, captioned "Provisions Applicable to Declarant", all to be accomplished in accordance with the

terms and conditions of the Condominium Documents, including, but not limited to, the Declaration, Bylaws and Declaration Plan, as recorded in the Office of the Recorder of Deed in and for Sussex County, Delaware (the "**Recorder's Office**"), at Deed Book ____ Page ____, Deed Book ____ Page ____, and Plot Book ____ Page ____, respectively; and

2. To take any and all such actions which Declarant deems necessary or desirable, in its sole subjective and absolute discretion, for the purpose of constructing additional condominium units and submitting any one or more Expansion Phases, including, but not limited to, any one or more Expansion Unit(s), to the Act and the Condominium Regime, including, but not limited to, for the purpose of reallocating the Percentage Interests for each unit (including the Unit) in the Common Elements by proportionately reducing the Percentage Interests of the Common Elements appurtenant to each unit (including the Unit) in the Condominium; and

3. To amend, modify, or otherwise change any one or more of the Condominium Documents, including, but not limited to, the Declaration, Bylaws, Rules and Regulations, Declaration Plan, and/or Declaration of Easement, or to cause each or all of them to be amended by filing with the Recorder's Office instruments, documents, amendments and plans required or necessary to (a) annex into the land and the improvements constituting the Property of the Condominium; and thereby to submit to each and every of the provisions of the Declaration and the Act and the Condominium Regime, all or any portion of the Expansion Area, including, but not limited to, the Expansion Unit(s), and (b) correct any clerical or typographical errors, ambiguities, title questions or defects, or conflicts with or to comply with any and all applicable laws and legal requirements – all without previously or subsequently obtaining the consent, approval, authorization, signature or other action or non-action of the Undersigned, the Association, the Executive Board, any Unit Owner, any Eligible Mortgage Holder, or the holder of any lien on any Unit or any other occupant of the Property or any Unit or any other third party; and

4. Without in any way detracting from the hereinabove authorized powers, I/we specifically request and authorize that my/our hereinabove designated true and lawful attorney to be authorized and directed to take any and all such action which it deems necessary for the purposes of, or in fulfillment of, any of the provisions contained herein, including, but not limited to, any such amendments, subdivisions or dedications; hereby giving unto my/our said attorney full power to do and perform every act whatsoever requisite or convenient to be done in the premises as fully to all intents and purposes as I/we could do if personally present and acting.

And I/we hereby, for myself/ourselves, my/our heirs, executors, administrators and assigns, confirm and agree to ratify and confirm whatsoever my/our said attorney may lawfully do by virtue of these presents, it being understood that this instrument is intended to be, and is, an irrevocable power of attorney coupled with an interest, and that this instrument shall bind all current and future owners and mortgagees of the Unit and shall run with and bind the Unit.

Whenever used, the singular number shall include the plural, the plural the singular and the use of any gender shall include all genders.

If any of the covenants, conditions, easements, restrictions, or other provisions contained herein shall be unlawfully void, or voidable for violation of the rule against perpetuities, then such

provisions shall continue only until twenty-one (21) years after the death of the last survivor of the now living descendants of Donald J. Trump, current President of the United States of America.

Any defined terms not otherwise expressly defined in this Irrevocable Power of Attorney Coupled With An Interest shall have the meanings and definitions provided in the Declaration.

IN WITNESS WHEREOF, I/we have hereunto set our hands and seals, this _____ day of _____, 20__.

Witness _____(SEAL)

Witness _____(SEAL)

STATE OF _____ :
:ss.
COUNTY OF _____ :

BE IT REMEMBERED, that on this _____ day of, _____, 202_, personally, came before me, the Subscriber, a Notary Public for the State and County aforesaid _____, _____, parties to this foregoing Irrevocable Power of Attorney Coupled With An Interest, known to me personally to be such, and acknowledged said Irrevocable Power of Attorney Coupled With An Interest and Release and Waiver to be his/her their voluntary act and deed.

GIVEN under my Hand and Seal of Office, the day and year aforesaid.

NOTARY PUBLIC

Print Name

Date Commission Expires

DECLARATION OF
DUTCHMAN'S HARVEST CONDOMINIUM

SCHEDULE "G"

EASEMENT AGREEMENTS

1. Utility Easement and Maintenance Agreement: Recorded 3/15/21 as set forth in Deed Record 5426 Page 204.
2. Notes, Easements and Restrictions as set forth in Plot Book 58 Page 132, Plot Book 61 Page 39, Plot Book 258 Page 94 and Plot Book 314 Page 83 and Plot Book 46 Page 57 and Plot Book 369 Page 8.
3. Cross Access and Utility Easement and Maintenance Agreement recorded 7/14/21 as set forth in Deed Book 5506, Page 190.
4. EASEMENT recorded on Book 2128 Page 350.
5. STORM WATER MANAGEMENT EASEMENT AGREEMENT recorded on October 13, 2020 as 5329 Page 50.